

M/s Kuwars Techno Pet v. Uttar Pradesh Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 13 February 2020 · Writ-C No. 5066 of 2020 · **Writ disposed; relegated to clause 6.5; demand stayed on deposit.**

HEADNOTE

A writ seeking quashing of a demand notice and correction of electricity bills will not be entertained where the consumer disputes bill correctness, because clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy before the Executive Engineer. The consumer may apply to that authority, who is to decide the representation by a speaking order after hearing. The demand dated 11 January 2020 was kept in abeyance for six weeks subject to deposit of Rs 5 lakh.

FACTUAL SUMMARY

M/s Kuwars Techno Pet, a consumer of Uttar Pradesh Power Corporation Limited, challenged a demand notice dated 11 January 2020 and sought a mandamus to recast allegedly erroneous electricity bills. It relied on representations dated 25 March, 8 July, 1 November and 3 December 2019 asking the licensee to issue a correct bill. The controversy placed before the Court was confined to the correctness of the bill raised against the petitioner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — statutory remedy before Executive Engineer

HOLDING

A writ seeking quashing of a demand notice and correction of electricity bills on a dispute as to bill correctness will not be entertained when clause 6.5 of the U.P. Electricity Supply Code, 2005 affords a statutory remedy before the Executive Engineer. The consumer may approach that authority within the time allowed; the representation is to be decided in accordance with law by a speaking order after hearing. ¶ 4-6

PRINCIPLE TAGS

clause-6.5-statutory-remedy-disputed-bill Writ on bill-correctness and a demand notice not entertained; consumer directed to the clause 6.5 remedy before the Executive Engineer. ¶ 4-5

clause-6.5-alternate-remedy Availability of the clause 6.5 statutory remedy was the reason the writ was not entertained on the billing dispute. ¶ 4-5

billing-objection-to-executive-engineer-under-6.5 Petitioner permitted to apply to the Executive Engineer within two weeks; that authority to decide by a speaking order after hearing within four weeks. ¶ 6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILLS AND VALIDITY OF THE DEMAND NOTICE DATED 11 JANUARY 2020

The Court declined to examine the billing dispute on merits in view of the clause 6.5 statutory remedy. ¶ 3-5